

		Hospitals (1992) 10 Cal.App.4th 1790, 1808 [failure to cooperate in arbitration “does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics,” but “may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence”]; Cinel v. Christopher (2012) 203 Cal.App.4th 759, 769 [resuming court jurisdiction].) ***ADR Review is continued to January 25, 2027 at 9 AM. Moving Party shall give notice of all the above.
11	Terteryan vs. Toyota Motor Sales, U.S.A., Inc. 2025-01510573	1. Motion to Compel Deposition (Oral or Written) 2. Motion to Compel Production MOTION NO. 1 Defendant Toyota Motor Sales, U.S.A., Inc.’s Motion to Compel Plaintiff Gevorg Terteryan’s Deposition is MOOT. Plaintiff’s deposition notice was served on October 6, 2025, with the deposition scheduled for December 11, 2025. (Webber Decl., ¶ 2. Exh. A.) Plaintiff objected to the date of the deposition, but failed to provide an alternative date, despite repeated attempts by defense counsel to obtain a new date. It now appears Plaintiff’s deposition went forward on May 6, 2026. The Court finds no substantial justification for Plaintiff’s failure to appear at his deposition date or provide dates for his deposition. Thus, Defendant’s request for monetary sanctions is GRANTED at a reduced amount for a total of \$720.00 (2 hrs at \$330/hr + \$60 filing fee) against Plaintiff and his counsel of record.

	(Code Civ. Proc., § 2025.450(g).) Sanctions to be paid within 30 days. MOTION NO. 2 Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Inspection of the Subject Vehicle is GRANTED. The demand for inspection of the vehicle was served on October 6, 2025, with a January 7, 2026, inspection date. (Webber Decl. ¶ 2, Exh. A.) Plaintiff did not produce the vehicle for inspection or serve objections. (Webber Decl. ¶ 7.) Accordingly, the motion for vehicle inspection is GRANTED. (Code Civ. Proc., § 2031.300(b).) The vehicle inspection shall take place on a mutually convenient date within 15 days. The Court finds no substantial justification for Plaintiff's failure to produce the Subject Vehicle for inspection. Thus, Defendant's request for monetary sanctions is GRANTED at a reduced amount for a total of \$720.00 (2 hrs at \$330/hr + \$60 filing fee) against Plaintiff and his counsel of record. (Code Civ. Proc., § 2031.300(c).) Sanctions to be paid within 30 days. ***NOTE: Plaintiff filed very untimely Oppositions. Although a court may choose to not consider untimely filings, this Court has considered the late Oppositions. All counsels are admonished that the Court will not consider late filings in the future. Defendant shall give notice.
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